# Brett Kavanaugh

**Brett Kavanaugh** (born February 12, 1965, Washington, D.C., U.S.) is an associate justice of the U.S. Supreme Court who was nominated by Pres. Donald Trump and confirmed in 2018. His confirmation hearings were marked by fierce arguments over allegations of excessive drinking and sexual misconduct.

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Associate Justice of the U.S. Supreme Court Brett Kavanaugh was nominated by Pres. Donald Trump and narrowly confirmed by the Senate

Kavanaugh is the only child of Everett Edward Kavanaugh, Jr., a lobbyist for the cosmetics industry, and Martha Kavanaugh, a public school teacher. Martha Kavanaugh later worked as a prosecutor in the Maryland state attorney's office and then as a state court judge, first with the District Court of Maryland and then with the Montgomery County Circuit Court.

Kavanaugh attended private Roman Catholic primary and secondary schools, including Georgetown Preparatory School during his high-school years. Admitted to Yale University, which his paternal grandfather Everett Edward Kavanaugh, Sr., had attended in the 1920s, Kavanaugh graduated cum laude in 1987 with a bachelor's degree in history. He then studied at Yale Law School, earning a law degree in 1990.

## Early career

For the next two years he clerked for federal appellate court judges, first with Walter Stapleton of the U.S. Court of Appeals for the Third Circuit and then with Alex Kozinski of the U.S. Court of Appeals for the Ninth Circuit. He worked for a year in the office of the U.S. solicitor general (who argues before the Supreme Court in cases in which the government has an interest) before, in 1993, beginning a clerkship with Supreme Court Justice Anthony Kennedy, whom he would eventually replace.

From 1994 to 1997 and again in 1998, Kavanaugh served on the legal team of independent counsel Kenneth Starr, who led a years-long investigation of Democratic Pres. Bill Clinton that culminated in Clinton's impeachment on charges of perjury and obstruction of justice in connection with his affair with a White House intern, Monica Lewinsky. Kavanaugh was in charge of the independent counsel's investigation into allegations by far-right groups that Clinton and his wife had arranged the murder of deputy White House counsel Vincent Foster (the investigation concluded that Foster had committed suicide), and he later directed Starr's detailed investigation into Clinton's sexual relations with Lewinsky.

Later still, Kavanaugh assisted the legal team of George W. Bush in its successful effort to end the recount of presidential votes in Florida following the 2000 election (*see Bush* v. *Gore*). During the late 1990s Kavanaugh also worked in private practice at the law firm of Kirkland & Ellis (1997–98 and 1999–2001), where Starr himself continued to be employed during part of his service as independent counsel.

*(Read Monica Lewinsky's Britannica essay on cyberbullying.)*

Following Bush's inauguration as president, Kavanaugh worked in the White House as associate counsel (2001–03), as senior associate counsel (2003), and finally as assistant to the president and staff secretary (2003–06). During this time he met his future wife, Ashley Estes, who was then serving as a personal secretary to the president. Bush twice nominated Kavanaugh to the U.S. Court of Appeals for the District of Columbia Circuit—in 2003 and 2005—but the nominations were never voted upon by the Republican-controlled Senate. In January 2006 Bush again nominated Kavanaugh to the D.C. Circuit, and he was finally confirmed in May. Because the D.C. Circuit has jurisdiction over many federal administrative agencies, it plays a larger role than other appellate courts in adjudicating federal regulations.

As an appellate court judge, Kavanaugh wrote opinions in high-profile cases concerning the Environmental Protection Agency (EPA), the Consumer Financial Protection Bureau, campaign finance laws, and the president's authority to protect national security and to oversee administrative agencies. Kavanaugh earned a

reputation as a careful, hardworking, and conservative judge. While serving on the D.C. Circuit, he also taught part-time at Yale Law School, the Georgetown University Law Center, and Harvard Law School, where he was first hired by Elena Kagan, then dean of the school and subsequently an associate justice of the Supreme Court.

In July 2018 Pres. Donald Trump nominated Kavanaugh to the Supreme Court to replace the retiring justice Kennedy. Kavanaugh's confirmation by the Republican-controlled Senate was considered likely, given that it would establish a dependable conservative majority on the Court, a longstanding objective of the Republican Party. With such a majority—which had not been possible under Kennedy, who occasionally sided with the Court's four liberal justices—Republicans would be able to count on future conservative rulings by the Court on a range of controversial issues, including abortion (*see Roe* v. *Wade*), affirmative action, campaign finance, environmental regulation, executive (presidential) power, separation of church and state, and voting rights, among others. Activists from both political parties accordingly mobilized to contest Kavanaugh's confirmation.

## Initial confirmation hearings

**Kavanaugh at a confirmation hearing**

Brett Kavanaugh being sworn in before the U.S. Senate Judiciary Committee during a confirmation hearing on September 4, 2018.

Kavanaugh's initial round of hearings before the Senate Judiciary Committee in September 2018 resembled those of other Supreme Court nominees since the 1990s: witnesses on his behalf praised his credentials and character; he expressed a general commitment to the Constitution and the rule of law; and he refused to provide meaningful answers to questions about his judicial philosophy or about how he would rule on specific questions that might come before the Court. Unusually, however, the documentary record made available to the committee became a source of considerable partisan squabbling. Democrats insisted that documents relating to Kavanaugh's service in the Bush White House—estimated to number in the hundreds of thousands—go through the conventional

process of review (by the National Archives and Records Administration) for release to the committee, a demand that Republicans complained was merely a tactic to delay Kavanaugh's confirmation until after the midterm elections in November.

Eventually the work of reviewing the documents was joined by a private attorney hired by Bush, an unprecedented arrangement (the attorney was a close friend and former White House colleague of Kavanaugh's). In addition, the Trump White House, citing executive privilege, refused to release some 100,000 of the documents, prompting charges of a cover-up from Democrats. Despite the controversy, after four days of hearings it appeared that Kavanaugh was headed for a successful confirmation vote.

## Accusations of misconduct

Later in September, however, a press report revealed the existence of a confidential letter, in the possession of Democratic Sen. Dianne Feinstein, that contained devastating allegations about Kavanaugh. Dr. Christine Blasey Ford, a professor of psychology at Palo Alto University, came forward as the author of the letter. She accused Kavanaugh of having sexually assaulted her on an unspecified date in the early 1980s, when both she and Kavanaugh were high-school students. The accusation came in the context of a broad international social movement, known as the #MeToo movement, in which women recounted their experiences of sexual assault and molestation, often at the hands of powerful men. Accusations of separate acts of sexual assault against Kavanaugh by other women followed the publication of Ford's claim.

Initially reluctant to acknowledge the accusations, the Judiciary Committee's Republican majority eventually relented to public pressure and scheduled an additional day of hearings. Ford and Kavanaugh were the only two witnesses called, each testifying before the committee for several hours. The additional hearings were criticized by partisans of both parties, Democrats complaining that the committee had not called Mark Judge, a friend of Kavanaugh's whom Ford had identified as a witness of the alleged attack, and Republicans arguing that Democrats had strategically withheld information about Ford's accusations until the last minute.

In her testimony, Ford described the incident and answered questions from a female prosecuting attorney from Arizona, whom Republican senators on the committee had engaged to speak for them. Ford asserted that she was “100 percent” certain that it was Kavanaugh who had assaulted her. Kavanaugh, during his own testimony, offered repeated, adamant, and sometimes-angry denials. Mirroring Ford’s language, he insisted that he was “100 percent” certain that the allegations against him were not true. He also characterized the charges as “a calculated and orchestrated political hit” by Democrats who resented Trump’s electoral victory in 2016 and who wished to exact revenge on behalf of “the Clintons” for Kavanaugh’s role in the Starr investigations. At various points in the hearing, he wept and yelled at Democratic senators in response to questions he considered unfair. Kavanaugh himself later characterized his performance as “very emotional.” “[M]y tone was sharp, and I said a few things I should not have said,” he wrote in an unprecedented opinion piece published in *The Wall Street Journal* a week after his testimony, explaining that he had felt “overwhelming frustration at being wrongly accused…of horrible conduct.”

Because Ford’s testimony described Kavanaugh as having been heavily inebriated at the time of the alleged attack, Kavanaugh’s drinking habits also became a topic of discussion and contention. Critics of Kavanaugh pointed to claims by several people who had known him in high school and college that he had been a very heavy drinker who became belligerent and aggressive when drunk. In his testimony, Kavanaugh acknowledged that he drank but denied that he did so to excess. Some Democrats on the committee charged that Kavanaugh’s denials had been untruthful and that those misrepresentations alone, because they amounted to perjury, should have disqualified him from the Court.

Following the Ford-Kavanaugh hearings, Republicans and Democrats agreed that Ford’s testimony had been “compelling” and “credible.” But members of the two parties disagreed about what next steps the committee should take. Democrats argued that the hearings had raised doubts about Kavanaugh’s character and temperament that were serious enough to scuttle his nomination. Republicans countered that the committee had heard no evidence directly corroborating Ford’s

claims and—likening the proceedings to a criminal trial—asserted that Kavanaugh should be presumed “innocent until proven guilty.”

After the Judiciary Committee voted to send Kavanaugh’s nomination to the full Senate, Republican majority leader Mitch McConnell acceded to the request of Republican Senators Jeff Flake and Lisa Murkowski to delay the vote for one week while the Federal Bureau of Investigation (FBI) conducted a supplemental investigation of the allegations—which was criticized as being unduly limited because of its failure to include interviews of key witnesses, including Ford and Kavanaugh themselves. The FBI prepared a confidential report that was available only to senators. An executive summary of the report made public by the Judiciary Committee declared that the agency had found “no corroboration” of any of the allegations against Kavanaugh.

## Confirmation and major Supreme Court cases

On October 6, 2018, the Senate voted to confirm Kavanaugh by a vote of 50 to 48, and he was sworn in on the same day. He became one of six Roman Catholic members of the Supreme Court, including four other conservative justices.

As an associate justice of the Supreme Court, Kavanaugh has been a reliable conservative vote, although he joined Chief Justice John Roberts and the liberal justices in a 2023 ruling in *Allen* vs. *Milligan* on voting rights. In 2022, he wrote a concurrence in the landmark case of *Dobbs* v. *Jackson Women’s Health Organization*, the ruling that struck down *Roe* v. *Wade*, which had guaranteed women’s right to abortion care. In his concurrence, he wrote:

- “To be clear, then, the Court’s decision today does not outlaw abortion throughout the United States. On the contrary, the Court’s decision properly leaves the question of abortion for the people and their elected representatives in the democratic process. Through that democratic process, the people and their representatives may decide to allow or limit abortion.”

On June 27, 2025, Kavanaugh filed a concurring opinion in another landmark case, *Trump* v. *CASA, Inc., et al.*. which was argued before the Court in response to Pres. Donald Trump’s emergency request that the Court issue a temporary stay on the nationwide injunctions that had halted enforcement of Trump’s executive order

eliminating birthright citizenship. Kavanaugh agreed with the Court's ruling in favor of Trump while acknowledging that federal district courts could still issue regional or nationwide injunctions in class-action lawsuits, in which plaintiffs may be granted preliminary "classwide relief" for members of the group they represent.

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